**IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD**

MONDAY, THE EIGHTH DAY OF JUNE
TWO THOUSAND AND TWENTY SIX

**PRESENT**

**THE HONOURABLE SRI JUSTICE VAKITI RAMAKRISHNA REDDY**

**MOTOR ACCIDENT CIVIL MISCELLANEOUS APPEAL NO: 4973 OF 2008**

Appeal under Section 173 of Motor Vehicles Act against the Judgment in M.V.O.P.No. 1821 of 2001 dated 21-11-2005 on the file of the Court of the Chairman Motor Accident Claims Tribunal-(Fast Track Court), Nizamabad at Kamareddy.

**Between:**

Kotnolla Swamy, S/o. Kotnolla Lingam, age 19 yrs, Occ: Student cum Agriculture R/o. Pedda Mallareddy village, Bhiknoor Mandal, Nizamabad District.

**...Claimant/Appellant**

**AND**

1. G.Ramakrishna, S/o.G.Ramulu, age 45 yrs, Occ: Business cum Owner of Auto Trolley No. AP 15 U 9956 R/o. H.No.7-1-117, Pattipaka Street, Siricilla, Karimnagar District.
2. The New India Assurance Company Limited, rep by its Divisional Manager, Divisional Office, Opp Z.P.Office, Subashnagar, Nizamabad.

**...Respondents / Respondents**

**Counsel for the Appellant: SRI P RADHIVE REDDY**

**Counsel for the Respondent No.2: SRI CH VENKAT NARAYAN**

**The Court delivered the following: JUDGMENT**

**IN THE HIGH COURT FOR THE STATE OF TELANGANA**
**AT HYDERABAD**

**THE HONOURABLE SRI JUSTICE VAKITI RAMAKRISHNA REDDY**

**M.A.C.M.A.No.4973 OF 2008**

**DATE: 08.06.2026**

**Between:**

Kotnolla Swamy

... Appellant

AND

G. Ramakrishna and another

...Respondents

**JUDGMENT**:

Dissatisfied with the quantum of compensation awarded by the learned Motor Accidents Claims Tribunal-cum-Fast Track Court, Nizamabad at Kamareddy (for short, the Tribunal) passed in O.P.No.1821 of 2001 dated 21.11.2005, the claimant has preferred the present Appeal seeking enhancement of the compensation awarded by the learned Tribunal.

2. For the sake of convenience, the parties hereinafter are referred as they were arrayed before the learned Tribunal.

**BRIEF FACTS**:

3. The brief facts of the case as can be seen from the record are that on 29.09.2001 the claimant and others were traveling in an Auto Trolley bearing registration No.AP.15.U.9956 from Pedda Mallareddy to Domakonda village and at about 6.00 p.m., when they reached near Pedda Mallareddy Village Shivar, the driver of

the auto trolley drove it in a rash and negligent manner with high speed in zig-zag manner. As a result the auto trolley fell in road side ditch and the claimant and others fell down from the auto trolley and the claimant sustained grievous injuries including skull fracture, loss of upper teeth, other teeth became loosened, face injured and disfigured and other injuries over the parts of the body. Immediately, the claimant was admitted at Government Hospital, Kamareddy and thereafter, he took treatment in private hospitals and incurred an amount of Rs.40,000/-. Prior to the accident the claimant was a student-cum-agriculturist and earning an amount of Rs.6,000/- per month. Due to the injuries sustained by the claimant, he was unable to move from the bed, could not walk and work, lost his future earnings and became dependent on others as he sustained permanent disability.

4. Respondent No.1 remained *ex-parte* before the learned Tribunal. Respondent No.2 filed a counter denying the averments made in the petition and the manner of the accident. It is also alleged that the accident occurred to goods carrying commercial vehicle auto trolley and the policy does not cover the risk of the appellant/unauthorized persons and prayed to dismiss the claim application.

**EVIDENCE BEFORE THE LEARNED TRIBUNAL**:

5. Based on the rival contentions, the learned Tribunal framed three issues. During the course of trial, PW's1 and 2 were examined and got marked Exs.A1 to A5 on behalf of claimant. On behalf of respondent No.2, its Senior Assistant was examined as RW1 and got marked Exs.B1 to B3. On behalf of respondent No.1 no oral and documentary evidence was adduced.

**FINDING OF THE LEARNED TRIBUNAL**:

6. The learned Tribunal after considering the rival contentions, partly allowed the claim petition by awarding compensation of Rs.12,000/- (Rupees Twelve Thousand Only) with interest at 9% per annum under various heads. The learned Tribunal exonerated the respondent No.2 insurer from the liability to pay compensation on the ground that the claimant was an unauthorized passenger travelling in a goods vehicle. Aggrieved by the quantum of compensation, the claimant preferred the present Appeal to enhance the compensation.

7. Heard Mr. Kuldeep Jadhav, learned counsel representing Sri P.Radhive Reddy, learned counsel for the appellant and Sri Ch.Venkat Narayana, learned counsel appearing on behalf of respondent No.2 and perused the entire record including the grounds of Appeal.

**ANALYSIS**:

8. Admittedly, the vehicle in which the claiming was travelling on the date of accident is a goods carriage vehicle and it is not meant for any passengers. There is no material to establish that the claimant was accompanying any goods nor was he engaged as a labourer on the said vehicle. Thus, the claimant is an unauthorized gratuitous passengers on the auto trolley. In *New India Assurance Co.Ltd., vs. Asha Rani*[1], the Apex Court held as follows:

> *"....Keeping in view the provisions of 1988 Act, it can be said that as the provisions thereof do not enjoin any statutory liability on the owner of a vehicle to get his vehicle insured for any passenger travelling in the goods vehicle, the insurer would not be liable therefore. ....An owner of a passenger carrying vehicle must pay premium for covering the risks of the passengers. If a liability other than the limited liability as provided for under the Act is to be enhanced under an insurance policy, additional premium is required to be paid."*

9. In *National Insurance Co.Ltd. Vs. Bommithi Subbayamma and others*[2], it was held as follows:

> *"Although the owner of the goods or his authorized representative would now be covered by the policy of insurance in respect of goods vehicle, it was*

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[1] 2003 ACJ 1 (SC)
[2] 2005(2) ACJ 721 (SC)

*not the intention of the legislature to provide for the liability of the insurer with respect to passengers, especially gratuitous passengers, who were neither contemplated at the time the contract of insurance was entered into, nor any premium was paid to the extent of the benefit of insurance to such category of people"*

10. In *New India Assurance Co.Ltd., vs. Vedwati & Others*[3], the Apex Court held as follows:

*"The inevitable conclusion, therefore, is that provisions of the Act do not enjoin any statutory liability on the owner of a vehicle to get his vehicle insured for any passenger travelling in a goods carriage and the insurer would have no liability therefore"*

11. This Court in a similar matter of the same accident in its earlier order in C. Santosh v. G. Ramakrishna[4] considered the above aspects and the principle laid down in the above said decisions and dismissed the appeal filed by the claimant therein seeking enhancement of compensation.

12. In view of the principles laid down in the above decisions and in view of the fact that the claimant was admittedly an unauthorized gratuitous passenger travelling in a goods vehicle, no liability can be fastened on the second respondent-insurer to pay

[3] 2007(1) Decisions Today (SC) 387
[4] TSHC: MACMA No.1837/2008 decided on 19.08.2008

the compensation. The impugned order of the learned Tribunal is not liable to be interfered with in that regard.

13. Now coming to the quantum of compensation, since the claimant alleged to have sustained head injuries, skill fracture and multiple injuries on the other parts of the body, he claims to have undergone treatment spending Rs.40,000/- in a private hospital. However, except filing the prescription, the claimant did not choose to file any medical record to disclose that he has incurred Rs.40,000/-. Further, Ex.B-2 the injury certificate merely showed that the claimant sustained only three simple injuries, first on the left temple, second on the left wrist and third on the upper lip. Though the claimant filed Ex.A-3 disability certificate to the effect that the claimant sustained permanent disability of 25%, Ex.B2 is the injury certificate issued by Government Area Hospital, Kamareddy, which discloses that the claimant has sustained three simple injuries. Thus, when the claimant sustained three simple injuries, the question of claiming suffering permanent disability to the extent of 25% does not arise. Moreover, the accident occurred on 29.09.2001 and whereas the disability certificate is dated 10.12.2002.

14. It is pertinent to note that the claimant has not examined the doctor, who has provided treatment to him. In the absence of the

testimony of the doctor, who examined or treated the claimant and in the absence of any medical record showing that the injuries have led to any permanent disability, the claim for compensation in that regard was rightly rejected by the learned Tribunal, more particularly in view of the nature of the injuries incorporated in Ex.B2. The only piece of medical evidence on record is the injury certificate-Ex.B-2 which shows that the claimant sustained only three simple injuries. For the said injuries, the learned Tribunal has awarded Rs.3,000/- each besides Rs.3,000/- towards pain and suffering, totaling to Rs.12,000/- which is considered to be just and reasonable, having regard to the fact that the claimant is shown to have sustained only three simple injuries.

**CONCLUSION**:

15. In view of the above discussion, this Court is of the considered view that the claimant failed to establish any of the grounds to enhance the compensation awarded by the learned Tribunal. Thus, the appeal is devoid of merits and liable to be dismissed.

**RESULT**:

16. In the result, the appeal is dismissed. There shall be no order as to costs.

All pending miscellaneous petitions, if any, shall stand closed.

SD/- P PONNA KRISHNA
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Motor Accident Claims Tribunal-cum-VI Additional District Judge (Fast Track Court), Nizamabad at Kamareddy.(If any Lower Court record)
2. One CC to Sri P Radhive Reddy, Advocate [OPUC]
3. One CC to Sri Ch Venkat Narayan, Advocate [OPUC]
4. Two CD Copies

ABK

HIGH COURT

DATED: 08/06/2026

JUDGMENT

MACMA.No.4973 of 2008




DISMISSING THE MACMA WITHOUT COSTS

(6)

kpr
01/7/26

**IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD**

MONDAY, THE EIGHTH DAY OF JUNE
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**THE HONOURABLE SRI JUSTICE VAKITI RAMAKRISHNA REDDY**

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ORDER: This appeal coming on for hearing and upon perusing the grounds of appeal, the Judgment and Decree of the Tribunal and the material papers in the MVOP and upon hearing the arguments of Sri P Radhive Reddy, Advocate for the Appellant and of Sri Ch Venkat Narayan, Advocate for the Respondent No.2.

This Court doth Order and Decree as follows:

1. That the MACMA be and hereby is dismissed;
2. That save as aforesaid, the decree of the Tribunal shall stands confirmed in all other respects; and
3. That there shall be no order as to costs in this appea .

SD/- P PONNA KRISHNA
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Motor Accident Claims Tribunal-cum-VI Additional District Judge (Fast Track Court), Nizamabad at Kamareddy.(if any Lower Court record)
2. Two CD Copies

ABK

HIGH COURT

DATED: 08/06/2026

DECREE

MACMA.No.4973 of 2008

DISMISSING THE MACMA WITHOUT COSTS

(4)

01/7/26